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UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **CAPTAIN G. SERRATO, in his individual and official capacities as Commander, Dublin Area, California Highway Patrol,** Defendant.	Case No. 4:26-cv-05953-ASK **PLAINTIFF'S PORTION OF JOINT CASE MANAGEMENT STATEMENT** (Civil L.R. 16-9; Standing Order for All Judges, N.D. Cal.) CMC: September 15, 2026 Time: 1:30 p.m. via Zoom Judge: Hon. Ajay S. Krishnan

PLAINTIFF'S PORTION OF JOINT CASE MANAGEMENT STATEMENT

This is Plaintiff's portion of the joint statement required by Civil Local Rule 16-9 and the Standing Order for All Judges of the Northern District of California. It is transmitted to counsel for Defendant for incorporation of the defense portion and a joint filing. Plaintiff does not file this document separately. Defense responses belong under each heading. The joint statement should not exceed ten pages except in unusually complex cases.

The initial case management conference is set for September 15, 2026, 1:30 p.m., by Zoom (cand.uscourts.gov/ask). On September 3, 2026, the parties stipulated to continue that

conference until fourteen days after a final order on Defendant's motion to dismiss and to vacate the September 8 disclosure, joint-statement, and ADR-certification dates (Dkt. 22). No signed order appears on PACER as of this writing. Plaintiff therefore submits this portion so that a joint statement can be filed today if the September 8 deadline remains live. Plaintiff still prefers the Dkt. 22 continuance. If the Court has entered that order, this portion should not be filed.

1. Jurisdiction and Service

Subject-matter jurisdiction is federal question, 28 U.S.C. §§ 1331 and 1343, on claims under 42 U.S.C. § 1983 and 28 U.S.C. §§ 2201-2202. Jurisdiction is not based on 28 U.S.C. § 1332(a). Plaintiff is not aware of a personal-jurisdiction or venue dispute. Venue is proper in this District and Division because the events occurred in Alameda County (CHP Dublin Area; I-580 East Livermore). No counterclaims have been filed. Defendant Captain G. Serrato was served August 5, 2026, by the United States Marshals Service on Kim Schoonmaker, Office Assistant, at CHP Dublin Area, 4999 Gleason Drive, Dublin, CA 94568 (Dkt. 15, filed August 6). DOES 1-10 remain unnamed. Plaintiff does not presently propose a service deadline for additional defendants in advance of a ruling on the pending motion to dismiss.

2. Facts

Chronology (Plaintiff's account). On November 1, 2024, CHP Officers Santiago Meza-Gonzalez (#023295) and Jose Melano (#023054) arrested Plaintiff on I-580 East Livermore (CHP Case No. RJ68845). Plaintiff contends the sworn report fabricated four material facts that the dashcam recording disproves: an alcohol odor never verbalized during a 62-minute encounter; "slurred" speech; that Plaintiff "seemed very confused and disoriented"; and "BEVERAGE PRESENT: YES" when the only liquid found was urine in a cup. On November 5, 2024, CHP issued a Penal Code section 851.6 Detention Certificate, reclassifying the incident as a detention only, not an arrest, for insufficient grounds for a criminal complaint. The district attorney declined to file charges.

On April 9, 2026, Plaintiff submitted a U-visa certification request to CHP Dublin Area

(completed Form I-918, Supplement B; legal memorandum; POST acknowledgment; timestamped dashcam transcript; supporting exhibits). Lieutenant Gary Paul e-mailed on April 10 that the request had been received and was under review. Penal Code section 679.10(j) required processing within 30 days. On April 20, 2026, Captain Serrato issued a five-sentence denial claiming a "thorough review," without addressing the dashcam, the section 851.6 certificate, the fabrications, the statutory elements, the section 679.10(h) presumption, or the section 679.10(g) specific-reasons requirement. Plaintiff contends the denial was arbitrary, process-deficient, structurally biased (Serrato as supervisor of the accused officers), and retaliatory for protected complaints to CHP, POST, and the courts. Serrato's March 26, 2026 letter had assigned Sergeant Eric Dutra to investigate the POST complaint (PUBLIC-26-000371, forwarded on or about March 23).

Principal factual issues in dispute (as Plaintiff understands them): what review, if any, preceded the April 20 denial; whether Serrato engaged with the packet and the evidence in CHP's possession; Serrato's knowledge of Plaintiff's protected activity; the reason for the denial; and the injuries that followed. Defendant's account belongs here.

3. Legal Issues

Without extended argument, Plaintiff identifies these disputed points of law: (a) whether the April 20 denial violated the Fourteenth Amendment's guarantee of non-arbitrary decision-making in the exercise of the certification function, see *Shanks v. Dressel*, 540 F.3d 1082 (9th Cir. 2008); (b) whether Plaintiff was denied constitutionally adequate process, see *Mathews v. Eldridge*, 424 U.S. 319 (1976), Penal Code § 679.10(g), (h), (j), and *Withrow v. Larkin*, 421 U.S. 35 (1975); (c) whether the denial was First Amendment retaliation for protected petitioning, see *Hartman v. Moore*, 547 U.S. 250 (2006), and *Borough of Duryea v. Guarnieri*, 564 U.S. 379 (2011); (d) qualified immunity; (e) the proper scope of prospective relief under *Ex parte Young*, 209 U.S. 123 (1908) (Plaintiff seeks vacatur and a new decision, not a directed Form B signature); and (f) whether punitive damages and fee claims may be stricken under Rule 12(f). Those issues are briefed on Dkt. 18 and Dkt. 20, set for hearing

September 30, 2026.

4. Motions

Prior: IFP granted and complaint found sufficient under 28 U.S.C. § 1915 (Dkt. 5, June 29, 2026); related-case motion granted as to Nforbi v. Meza-Gonzalez, then 3:26-cv-08271-PHK, now 4:26-cv-08271-ASK (Dkt. 16, 17). Pending: Defendant's motion to dismiss the FAC and/or strike (Dkt. 18), opposition Dkt. 20, hearing reset by Dkt. 21 to September 30, 2026, 1:30 p.m., Oakland Courtroom 4 (Dkt. 21's 2025 briefing years are wrong on the face of the notice). Dkt. 22 (stipulation to continue the CMC) is filed; no order. Plaintiff's Civil L.R. 3-15 certification was executed September 4, 2026, and has not yet been filed. Plaintiff's August 25 administrative motion concerning Candelaria, 3:26-cv-08272-LJC (docketed as Dkt. 19) had no order on the September 4 PACER report. Anticipated: Defendant's reply on Dkt. 18; possibly an answer if the motion is denied in whole or in part; possibly amendment if leave is granted. Plaintiff does not presently anticipate a separate Rule 12 motion.

5. Amendment of Pleadings

The operative pleading is the First Amended Complaint (Dkt. 10), with Notice of Errata (Dkt. 12) correcting related-action disclosure. Plaintiff does not presently intend to add parties or claims before a ruling on Dkt. 18, except as that ruling may require. Plaintiff proposes any amendment deadline of 30 days after the Court's order on Dkt. 18.

6. Evidence Preservation

Plaintiff has reviewed the Northern District's Guidelines Relating to the Discovery of Electronically Stored Information. Plaintiff has preserved e-mails, PDFs, and files in his possession relating to the certification request, the denial, and this case, and has not operated a document-destruction program. The parties spoke by telephone on September 3, 2026 (Dkt. 22 ¶ 7). Plaintiff asks Defendant to confirm preservation of the dashcam original, CAD and arrest-report files for RJ68845, the April 9 packet as received, internal-affairs and complaint files, and e-mail concerning the request and the April 20 denial. Plaintiff is prepared to complete an ESI meet-and-confer under Guidelines 2.01 and 2.02.

7. Disclosures

Plaintiff is serving Rule 26(a)(1) initial disclosures with this portion, dated September 8, 2026: witnesses, document categories and locations, a damages computation (the FAC pleads no dollar figure; noneconomic damages according to proof; no imported wage number from a related arrest case), and insurance (none known as to Plaintiff). Defendant's compliance should be stated here.

8. Discovery

No formal discovery has been taken. The parties' September 3 telephone conference is the Rule 26(f) conference of record in Dkt. 22. Plaintiff proposes: written discovery (interrogatories, requests for production, requests for admission) to Defendant; third-party process to CHP and POST custodians for the categories in Plaintiff's disclosures; and depositions of Captain Serrato, Lieutenant Paul, Sergeant Dutra, and, as needed, Officers Meza-Gonzalez and Melano. Plaintiff has considered a stipulated e-discovery order and is willing to use the District's model. Plaintiff does not agree that a discovery stay follows automatically from the pending Rule 12 motion; Plaintiff is willing to discuss deferring depositions until after a ruling if document discovery may proceed. No discovery dispute is pending. Defendant's plan belongs here.

9. Class Actions

This is not a class action.

10. Related Cases

(a) *Nforbi v. Meza-Gonzalez et al.*, No. 4:26-cv-08271-ASK, this Court (related by Dkt. 17, August 24, 2026); claims against the stopping officers arising from November 1, 2024. (b) *Newanforbi v. California Highway Patrol et al.*, Alameda Superior Court No. 26CV191136 (writ of mandate concerning Penal Code section 679.10); Hon. Jenna M. Whitman, August 29, 2026, overruled the demurrer as to Count 1, sustained Counts 2-3 without leave, and sustained Count 4 with leave; Dutra and Paul were dismissed by stipulation. (c) POST Case No. PUBLIC-26-000371. (d) Plaintiff's August 25 administrative motion (Dkt. 19) asking whether *Nforbi v. Candelaria et al.*, No. 3:26-cv-08272-LJC, should also be related; no order on the September 4 PACER report. Terminated proceedings recited in the motion-to-dismiss papers

include Alameda No. 26CV168913 and E.D. Cal. No. 2:25-cv-01460-DC-CSK (dismissed without prejudice).

11. Relief

As pleaded: compensatory damages for deprivation of meaningful access to the U-visa process, immigration uncertainty, inability to obtain employment authorization and removal protections, emotional distress, anxiety, and dignitary injury; punitive damages against Defendant individually; costs, interest, and fees under 42 U.S.C. § 1988(b) and Code of Civil Procedure section 1021.5; and declaratory and injunctive process-correction relief — vacatur of the April 20, 2026 denial and a new decision applying the correct standards to the evidence, not a directed Form B signature (Dkt. 20). The FAC does not plead a specific compensatory figure. Noneconomic damages will be proved according to the evidence. Plaintiff has not quantified a wage-loss figure in this action and will supplement if one is developed. Punitive damages according to proof. Defendant should state any competing method of calculation.

12. Settlement and ADR

Prospects: Plaintiff is willing to settle on vacatur of the denial, a constitutionally adequate new certification decision, and reasonable compensatory relief. The pending motion to dismiss is the principal obstacle to a meaningful negotiation. ADR efforts to date: the September 3 telephone conference; no mediation. Plan: court-sponsored mediation after a ruling on Dkt. 18, consistent with ADR L.R. 3-5. The ADR certification was due August 25, 2026 (Dkt. 4). Service was completed August 5, so that date ran before a complete Rule 26(f) conference; no ADR certification appears on the September 4 PACER report. Plaintiff will file the ADR certification promptly unless Dkt. 22 vacates that deadline. Defendant's ADR position belongs here.

13. Other References

This case is not suitable for binding arbitration, a special master, or the Judicial Panel on Multidistrict Litigation.

14. Narrowing of Issues

The Rule 12 motion may narrow or end claims. If claims proceed, the parties may be able to stipulate to authenticity of the April 9 packet, the April 10 e-mail, the April 20 denial, the

dashcam recording, Report RJ68845, and the section 851.6 certificate. Plaintiff does not request bifurcation. Plaintiff proposes the following as the most consequential issues (Defendant to confirm or substitute):

Whether the April 20, 2026 denial violated the Fourteenth Amendment (substantive and/or procedural due process).

Whether the denial was First Amendment retaliation for protected petitioning.

Whether qualified immunity bars damages against Defendant in his individual capacity.

Resolution of the first two issues on a correct legal standard, including on Dkt. 18, will determine whether discovery and trial are required and the scope of any prospective remedy.

15. Scheduling

Plaintiff prefers the Dkt. 22 schedule: continue the initial CMC until fourteen days after a final order on Dkt. 18, and reset disclosure, JCMS, and ADR dates from that conference. If this conference proceeds on September 15, Plaintiff proposes the following, subject to adjustment after the motion-to-dismiss ruling:

Close of fact discovery: April 16, 2027

Opening expert disclosures: May 14, 2027

Rebuttal expert disclosures: June 11, 2027

Close of expert discovery: June 25, 2027

Last day to hear dispositive motions: August 12, 2027

Pretrial conference: September 15, 2027

Jury trial: October 5, 2027, or the first available date thereafter

If the Court grants leave to amend, Plaintiff proposes that these dates run from the amended pleading rather than from September 15. Defendant's dates belong here.

16. Trial

Plaintiff demanded a jury (PACER: Jury Demand: Plaintiff) and expects a jury trial of approximately four to five court days. Official-capacity prospective relief, if tried, would be to the Court.

17. Disclosure of Non-party Interested Entities or Persons

Plaintiff executed a Civil L.R. 3-15 Certification of Conflicts, Interested Entities and Persons, and Citizenship on September 4, 2026. It has not yet been filed; Plaintiff will file it promptly. Restated: Plaintiff is a natural person with no parent corporation and no litigation funder. As of September 4, 2026, there is no conflict or interest (other than the named parties) to report. Plaintiff is not aware of any conflict the presiding Judge may have with the parties. This Court's jurisdiction is not based on 28 U.S.C. § 1332(a). Defendant's certification belongs here.

18. Professional Conduct

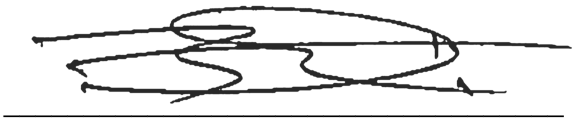
Plaintiff, appearing in propria persona, has reviewed the Guidelines for Professional Conduct for the Northern District of California. Counsel of record should confirm their review.

19. Other Matters

Plaintiff consented to magistrate-judge jurisdiction (Dkt. 8). Plaintiff does not know whether Defendant has filed a consent or declination. The initial CMC remains by Zoom at cand.uscourts.gov/ask. Please do not treat Dkt. 22 as an order until it is signed and on PACER.

Dated: September 8, 2026

Respectfully submitted,



BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per